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Case Number: 25PSCV00258 Hearing Date: September 15, 2026 Dept: G

Plaintiff

Zuojun Zhuang's Motion for Leave to File First Amended Complaint

Respondent:

Defendant JCN Investment Group LLC

TENTATIVE

RULING

Plaintiff

Zuojun Zhuang's Motion for Leave to File First Amended Complaint is DENIED
WITHOUT PREJUDICE.

BACKGROUND

This

is a personal injury action. On January
24, 2023, plaintiff Juojun Zhuang (Zhuang) allegedly fell through the roof of
defendant JCN Investment Group LLC (JCN) and sustained injuries.

On January

23, 2025, Zhuang filed the Complaint, alleging causes of action for (1) general
negligence and (2) premises liability.

On

May 21, 2026, Zhuang filed this motion for leave to file amended complaint. On September 1, 2026, JCN filed the
opposition, and on September 3, 2026, Zhuang filed the reply.

This

case is set for a status conference and a hearing on the motion on September 15, 2026.

ANALYSIS

Zhuang

moves to file a proposed Amended Complaint.

For the following reasons, the motion is DENIED.

Legal

Standard

“A

court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading.” (Code

Civ. Proc., § 473, subd. (a)(1).) The

court’s discretion will usually be exercised liberally to permit amendments of the pleadings. (Nestle v. City of

Santa Monica (1972) 6 Cal.3d 920, 939.)² “A motion to amend a pleading

before trial must . . . [i]nclude a copy of the proposed . . . amended

pleading, which must be serially numbered to differentiate it; [s]tate what

allegations in the previous pleading are proposed to be deleted, if any, and

where, by page, paragraph, and line number, the deleted allegations are

located; and [s]tate what allegations are proposed to be added to the previous

pleading, if any, and where, by page, paragraph, and line number, the

additional allegations are located.”³ (Cal. Rules of Court, rule 3.1324(a).)⁴

The motion must include a declaration that specifies the amendment’s effect,

why it is necessary and proper, when the facts supporting the amended allegations

were discovered, and why the request was not made earlier.⁵ (Cal. Rules of

Court, rule 3.1324(b).)

Nevertheless,

even where a moving party complies with the requirements of Rule 3.1324 and

such proposed amendment is proper, leave to amend is not an absolute

right. (See *In re Marriage of Liss*

(1992) 10 Cal.App.4th 1426, 1429, noting, “Of course, a trial court also has

discretion to deny amendments to pleadings if amendment would not be in

furtherance of justice.”) A court may

properly deny amendment based on several factors, including the bad faith

conduct of the moving party, the belated presentation of the amendment, or the futility of the amendment. (See *Leader v. Health Industries of America, Inc.* (2001) 89 Cal.App.4th 603, 613; see also *Jenkins v. JP Morgan Chase Bank, Nat. Assn.* (2013) 216 Cal.App.4th 497, 535, suggesting that the court deny leave to amend based on futility where the facts are not in dispute and no liability exists under substantive law; see, e.g., *Hirsa v. Super. Ct.* (1981) 118 Cal.App.3d 486, 490, holding that the court may deny leave to amend if the moving party needlessly delayed, which prejudiced the opposing party.) Further, leave to amend must be denied where prejudice is shown to the adverse party. (*Miles v. City of Los Angeles* (2020) 56 Cal.App.5th 728, 739.) Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence, or added costs of preparation, including the completion of additional discovery. (See *Solit v. Tokai Bank, Ltd. N.Y. Branch* (1999) 68 Cal.App.4th 1435, 1448; see also *Miles*, supra, at 739.)

Discussion

As

a preliminary matter, the court must determine whether the motion complies with the requirements of Rule 3.1324. As stated above, the California Rules of Court require the moving plaintiff to identify the proposed changes to the pleading, explain why such changes are necessary and proper, and further explain why the changes were not made sooner. (See Cal. Rules of Court, rule 3.1324, subds. (a)–(b).)

Zhuang

provides a copy of the proposed Amended Complaint. (See Mot., Exh. A.) Even though Zhuang does not include a redlined copy of the Amended Complaint to identify the proposed changes, the court finds the motion sufficiently identifies the proposed changes. (See Mot., pp. 12–13.) Zhuang explains that the proposed changes

“add a Cause of Action Negligence Pursuant to Labor Code section 3706 (failure to secure workers’ compensation insurance); and [Section] 6403 (failure to provide a safe place of employment).” (Mot., p. 7.)

According

to counsel, Zhuang did not seek amendment sooner because he learned the new facts that serve as the basis for amendment only after litigation started and

the parties engaged in discovery. (See Mot., Bourgi Decl., ¶¶ 3–6, 8–9.) However, as JCN highlights, counsel does not identify which facts Zhuang learned from specific discovery responses. (See Opp., pp. 4–5.) Furthermore, the purported newly discovered facts were known to Zhang when he filed the original Complaint. (See Opp., pp. 5–6.) Thus, the court finds the motion is procedurally deficient under Rule 3.1324.

Accordingly, the motion for leave to file an amended complaint is DENIED WITHOUT PREJUDICE. Since the court decides this motion based on the failure to comply with Rule 3.1324, the parties' arguments regarding prejudice are HELD IN ABEYANCE.

CONCLUSION

For these reasons, the motion for leave to file first amended complaint is DENIED WITHOUT PREJUDICE.